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Tentative Ruling

Re: **Corral v. Webull Financial**
Superior Court Case No. 24CECG01122

Hearing Date: May 19, 2026 (Dept. 403)

Motion: By Defendant to Compel Plaintiff's Responses to Requests for Production and Special Interrogatories, to Deem Admissions Admitted, and for Monetary Sanctions

Tentative Ruling:

To deny. (Code Civ. Proc., §§ 1012-1013b.)

Oral argument on this matter is continued to June 3, 2026, at 3:30 in Dept. 403 so that the plaintiff may be present for oral argument via Zoom.

Explanation:

Service of the motions is defective. Defendant served plaintiff with the moving papers on February 13, 2026 at Pleasant Valley State Prison P.O. Box 8500 in Coalinga, California. *At that time*, the court's records indicate that service should have been at P.O. Box 3461 in Corcoran, California.

Defendant asserts that it propounded Special Interrogatories (Set One), Requests for Production (Set One), and Requests for Admissions (Set One) on plaintiff on December 23, 2025. Such were served at the Pleasant Valley State Prison P.O. Box 8500 in Coalinga, California. This mailing address is inconsistent with the mailing address the court had for plaintiff at the time the discovery was propounded. *At that time*, the court's records indicate that service should have been at P.O. Box 3461 in Corcoran, California.

Currently, the court's records indicate service should be made to plaintiff at California Men's Colony State Prison P.O. Box 8101 in San Luis Obispo, California.

The court's records do not reflect any email for plaintiff. As such, the court is not inclined to find email to satisfy service.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 5/18/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Tomik v. Albertsons Companies, Inc. et al.***
Superior Court Case No. 23CECG05182

Hearing Date: May 19, 2026 (Dept. 403)

Motion: By Defendants Albertsons Companies, Inc. and Madison Realty LLC for Leave to File Cross-Complaint

Tentative Ruling:

To grant. Defendants Albertsons Companies, Inc. and Madison Realty LLC shall serve and file their cross-complaint within 10 days of the date of service of this order.

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Defendants Albertsons Companies, Inc. and Madison Realty LLC (together "Defendants") seeks leave to file a cross-complaint to state a claim against cross-complainant Paynter Realty & Investments, Inc. and nonparty Citywide Property Services, Inc. (together "Proposed Cross-Defendants") for indemnity, apportionment, and declaratory relief, pursuant to Code of Civil Procedure section 426.50.

Defendants contend that they seeks to state a claim against Proposed Cross-Defendants for issues arising out of the same facts and incidents alleged by plaintiff Cindy Jean Tomik in the First Amended Complaint. As Defendants seek to state a claim against an existing party, related to the party's causes of action, the cross-complaint is compulsory. (Code Civ. Proc., § 426.30, subd. (a).)

Where a proposed cross-complaint is compulsory and seeks to state a claim against an existing party after the time to file an answer has passed, Code of Civil Procedure section 426.50 controls. Code of Civil Procedure section 426.50 states that:

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

What constitutes good faith, or a lack of it under Code of Civil Procedure section 426.50 must be determined in light of and in conformity with great liberality. (Foot's

